

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2024CUPP023718: JANE ROE, A MINOR BY AND THROUGH HER GUARDIAN AD
LITEM DIANDRA FRIENDS vs SANTA PAULA UNIFIED SCHOOL DISTRICT**

09/16/2026 in Department 42

**Motion to Quash Deposition Subpoena for Production of Business Records Issued to
McKinna Elementary School**

Motion: Plaintiff Jane Roe's Motion to Quash Deposition Subpoena for Production of Business Records Issued to McKinna Elementary School (*opposed*).

Tentative Ruling:

Plaintiff Jane Roe's Motion to Quash Deposition Subpoena for Production of Business Records Issued to McKinna Elementary School is GRANTED in part and DENIED in part.

Discussion:

Defendant served the Custodian of Records for McKinna Elementary School a subpoena requesting production of the following records:

1. Any and all educational records relating to ____ including but not limited to transcripts, report cards, records of disciplinary referrals, behavioral incidents, detention records, suspension records (in-school and out-of-school), expulsion proceedings, incident reports, witness statements, investigative materials maintained by the school, communications with parents or guardians concerning disciplinary issues, and records reflecting disciplinary actions taken or considered.
2. Any and all MENTAL HEALTH and MEDICAL RECORDS from the first date of treatment up until the present date (i.e. the date of production for the subject subpoena), RELATING TO TREATMENT provided to ____.
3. Any and all MENTAL HEALTH and MEDICAL BILLS from the first date of treatment up until the present date (i.e. the date of production for the subject subpoena), RELATING TO TREATMENT provided to ____.
4. Any and all records of any COMMUNICATIONS to and/or from ____ and/or her legal representative from the first date of treatment up until the present date (i.e. the date of production for the subject subpoena).

Plaintiff objected to the subpoena on the following grounds:

1. Fails to describe the documents sought with reasonable particularity;
2. Is overly broad in time and scope in that it seeks any and all medical and billing records of any kind not directly related to the current case;
3. Is not reasonably calculated to lead to the discovery of admissible evidence and therefore seeks documents that are beyond the scope of permissible discovery;

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4. Fails to comply with the notice and service requirements established by the California Code of Civil Procedure; and
5. Seeks information protected by Ms. Friends' Constitutional Right to Privacy.

“The state Constitution expressly grants Californians a right of privacy. (Cal. Const., art. I, § 1.) Protection of informational privacy is the provision's central concern. [Citation]. In *Hill*, we established a framework for evaluating potential invasions of privacy. The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. [Citation]. The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 552.)

“In determining whether one has waived the right of privacy by bringing suit, our Supreme Court has noted that although there may be an implicit partial waiver, the scope of such waiver must be narrowly, rather than expansively construed, so that plaintiffs will not be unduly deterred from instituting lawsuits by fear of exposure of private activities. [Citations]. An implicit waiver of a party's constitutional rights encompasses only discovery directly relevant to the plaintiff's claim and essential to the fair resolution of the lawsuit. [Citation]. There must be a compelling and opposing state interest justifying the discovery. [Citation]. Even when discovery of private information is found directly relevant to the issues of ongoing litigation, it will not be automatically allowed; there must then be a careful balancing of the compelling public need for discovery against the fundamental right of privacy. [Citation]. The scope of any disclosure must be narrowly circumscribed, drawn with narrow specificity, and must proceed by the least intrusive manner.” (*Davis v. Superior Court* (1992) 7 Cal.App.4th 1008, 1014.)

The subpoena at issue seeks behavioral, disciplinary, mental health and educational records related to Plaintiff's time at McKinna Elementary School. Plaintiff was at McKinna prior to the incidents giving rise to this lawsuit, and she asserts her records from that school are not relevant. Defendant asserts that Plaintiff testified that she experienced some mental health issues while at McKinna and that the requested information is relevant to her claimed damages.

“In considering the first of the three factors comprising the threshold inquiry, it is clear that patients ‘have a bona fide interest in the confidentiality of their [medical] information.’ [Citation].” (*County of Los Angeles v. Superior Court* (2021) 65 Cal.App.5th 621, 641.) Further, “it [is] clear that patients have ‘a reasonable expectation of privacy under the [particular] circumstances.’ [Citation].” (*Id.* at p. 643.) Finally, privacy interests in psychiatric records is particularly strong and in some respects entitled to more robust protections. (*Id.* at p. 645.)

In addition, the privacy of pupil records is established by statute. (Ed. Code, §§ 49060, et seq.; *Poway Unified School Dist. v. Superior Court* (Copley Press) (1998) 62 Cal.App.4th 1496, 1506.)

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Plaintiff has shown that the records at issue here have a legally protected privacy interest, an objectively reasonable expectation of privacy and a threatened intrusion. Defendant has the burden of showing an important countervailing interest that disclosure serves.

The subpoena is overbroad and Defendant has not met its burden as to all categories. The Court agrees that to the extent Plaintiff had pre-existing mental health issues, Plaintiff's privacy interest is outweighed and she has placed her mental health at issue to some degree by virtue of her complaint. As to the other categories of information sought, Defendant has not met its burden.

The motion to quash is therefore DENIED as to educational records related to concerns expressed by others about Plaintiff's mental health, Plaintiff's own complaints or concerns related to her mental health, and any records reflecting treatment for Plaintiff's mental health. As to all other categories, the motion is GRANTED.

Defendant to give notice.